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ANNEX 11

RESOLUTION MSC.528(106)
(adopted on 11 November 2022)

RECOMMENDED COOPERATION TO ENSURE THE SAFETY OF LIFE AT SEA,
THE RESCUE OF PERSONS IN DISTRESS AT SEA AND THE SAFE
DISEMBARKATION OF SURVIVORS

THE MARITIME SAFETY COMMITTEE,

RECALLING Article 28(b) of the Convention on the International Maritime Organization concerning the functions of the Committee,

UNDERLINING the importance of international trade by ships ensuring the free movement of goods keeping global supply chains intact,

RECALLING the duty for everybody to assist persons in distress at sea,

NOTING that UNCLOS, the SOLAS Convention, chapter V and the SAR Convention set the
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NOTING that UNCLOS, the SOLAS Convention, chapter V and the SAR Convention set the framework for assistance to persons in distress at sea,

AGREEING ON the necessity of ensuring free and unhindered navigation,

BEARING IN MIND the necessity of ensuring safe working conditions for all seafarers,

BEARING ALSO IN MIND that persons in distress at sea are under considerable risk and stress,

BEARING FURTHER IN MIND that having on boa rd survivors might inadvertently pose significant risks to the safety of ships rendering assistance, their crews, passengers and themselves,

RECOGNIZING the possible impact on seafarers' physical and mental well-being,

RECOGNIZING ALSO the need for ships to be enabled to safely disembark survivors as soon as possible,

STRESSING that a rescue operation is not completed until the survivors are disembarked in a place of safety,

RECOGNIZING that the scope of this resolution is limited to promoting the safety of life at sea,
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a place of safety,

RECOGNIZING that the scope of this resolution is limited to promoting the safety of life at sea,

STRESSING that this resolution is without prejudice to other obligations of States, including under human rights law and refugee law,

BEING DEEPLY CONCERNED by incidents where ships were not given access to disembark survivors taken on board in a distress situation as soon as reasonably practicable and with minimum further deviation from the ships' intended voyage,

RECOGNIZING the necessity to strengthen the cooperation between Member States according to the SAR Convention,

REITERATING the Organization's determination to enhance safety of life at sea,

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CALLS ON Member States, acting in their respective capacities as flag States, coastal States and port States, as well as shipowners, masters of ships, seafarers and other relevant organizations and stakeholders, to ensure safety of life at sea by:

.1 taking duly into account the need for quick and effective cooperation in all phases of a search and rescue operation,

.2 minimizing the time survivors remain aboard the ship rendering assistance,

.3 also taking duly into account that according to international law, a search and rescue operation is not concluded until the survivors have been disembarked and delivered to a place of safety,

.4 promoting the cooperation between coastal States and flag States of ships involved in SAR operations in accordance with the obligations of the SOLAS and SAR Conventions.

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and SAR Conventions.

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